

STATE OF HAWAII
BUREAU OF CONVEYANCES
RECORDED

February 1, 2022 2:02 PM
Doc No(s) A - 80670873

Doc 1 of 1
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/s/ LESLIE T KOBATA
REGISTRAR

AFTER RECORDATION, RETURN BY: MAIL [] PICK-UP [X]:

EKIMOTO & MORRIS, LLLC
JOHN A. MORRIS, ESQ./alt
888 Mililani Street, 2nd Floor
Honolulu, HI 96813-2918

Total pages: 7

TMK No. (2) 1-1-7-101

Condominium Map No. 3192 (Bureau)

**AMENDMENT TO THE BY-LAWS OF THE ASSOCIATION OF APARTMENT OWNERS OF
NA HALE O MAKENA**

This AMENDMENT TO THE BY-LAWS OF THE ASSOCIATION OF APARTMENT OWNERS OF NA HALE O MAKENA ("Amendment") is made by the **ASSOCIATION OF APARTMENT OWNERS OF NA HALE O MAKENA**, a Hawai'i nonprofit corporation, whose address is c/o 115 East Lipoa Street, Suite 100, Kihei, HI 96753 ("Association"),

WITNESSETH THAT:

WHEREAS, Makena Estates L.L.C., as developer of the condominium project known as Na Hale O Makena (the "Project") filed a Declaration of Condominium Property Regime of Na Hale O Makena at the Bureau of Conveyances of the State of Hawaii ("Bureau") as Document No. 2000-166795 dated November 20, 2000 ("Declaration"), together with Condominium Map No. 3192;

WHEREAS, the By-Laws of the Association of Apartment Owners of Na Hale O Makena were filed in the Bureau as Document No. 2000-166796 dated November 20, 2000 ("Bylaws");

WHEREAS, the Declaration was amended by instrument dated August 12, 2007, recorded in said Bureau as Document No. 2007-221527; and

WHEREAS, the Declaration, as amended, provided for the organization and operation of the Association of Apartment Owners of Na Hale O Makena to operate and manage the Project in accordance with the Bylaws; and

WHEREAS, the Bylaws were amended by instrument dated June 18, 2001, recorded in said Bureau as Document No. 2001-096485; by instrument dated February 19, 2009, recorded in said Bureau as Document No. 2009-033482; and by instrument dated October 30, 2019, recorded in said Bureau as Document No. A-72430789; and

WHEREAS, the Association was incorporated on July 9, 2001 under HRS Chapter 415B, as the **ASSOCIATION OF APARTMENT OWNERS OF NA HALE O MAKENA**; and

WHEREAS, amendment of the Bylaws requires at least 67% of all unit owners to approve by vote or written consent pursuant to HRS § 514B-108(e); and

WHEREAS, on or before January 21, 2021, at least 67% of all unit owners approved by written consent to amend the Bylaws as set forth herein.

NOW, THEREFORE, BE IT RESOLVED THAT **Section 3.3 of the Bylaws** is amended to add the following paragraph:

Notwithstanding anything to the contrary in these By-Laws, if authorized by the Board of Directors, the Apartment Owners or proxies of Apartment Owners may participate at an annual or special meeting of the Apartment Owners by means of the Internet, teleconference, or other electronic transmission technology ("Electronic Meeting") in a manner that allows attendees the opportunity to (a) read or hear the proceedings substantially concurrently with the occurrence of the proceedings; (b) vote on matters submitted to the Apartment Owners including election of directors, provided that votes may be verified by at least one owner not running for election or related to a person running for election who is appointed as a tally clerk; (c) pose questions; and (d) make comments. An owner or proxy of an owner participating in an Electronic Meeting shall be deemed to be present in person at the meeting. The Board may implement reasonable measures to conduct the meeting and to verify that each person deemed present and permitted to vote at the Electronic Meeting is an owner or proxy of an owner. Votes cast at an Electronic Meeting shall not be required to be secret and may be cast by voice vote, roll call vote, directed proxy, written consent, or ballot in accordance with rules established by the Board of Directors.

In all other respects, the Bylaws, as amended, remain unchanged and are in full force and effect and shall be binding upon and inure to the benefit of the parties to them and their respective successors and permitted assigns.

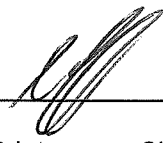
Each of the undersigned officers of the Association hereby warrants and represents that he or she is legally authorized to sign this Amendment on behalf of the Association. The undersigned officers of the Association hereby certify that the foregoing was adopted with the written consent of more than sixty-seven percent of all unit owners.

The officers of the Association agree that this Amendment may be executed in counterparts, each of which shall be deemed an original, and said counterparts shall together constitute one and the same instrument, binding the parties thereto, notwithstanding that all the parties are not signatories to the original or the same counterpart. For all purposes, including without limitation, recordation, filing and delivery of this Amendment, duplicate, unexecuted and unacknowledged pages of the counterparts may be discarded and the remaining pages assembled as one document.

(The remaining portion of this page is intentionally left blank; signature page follows.)

3rd IN WITNESS WHEREOF, the parties hereto have executed these presents this
day of JANUARY, 2022.

ASSOCIATION OF APARTMENT OWNERS OF
NA HALE O MAKENA

By: 
(Print name: Charles Edward Gaglardi)
Its: President

By: _____
(Print name: Frank Ross Murray)
Its: Treasurer

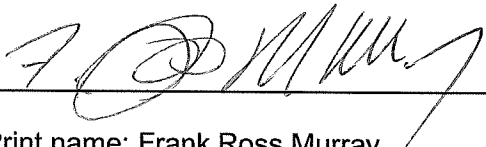
20th IN WITNESS WHEREOF, the parties hereto have executed these presents this
day of JANUARY, 2022.

ASSOCIATION OF APARTMENT OWNERS OF
NA HALE O MAKENA

By: _____

(Print name: Charles Edward Gaglardi)

Its: President

By: 

(Print name: Frank Ross Murray)

Its: Treasurer

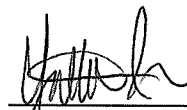
STATE OF HAWAII

COUNTY OF MAUI

)
) ss.
)

On this 3rd day of JANUARY, 2022, in the Second Circuit of the State of Hawai'i, before me personally appeared **CHARLES EDWARD GAGLARDI**, personally known to me or proven to me on the basis of satisfactory evidence, who being duly sworn or affirmed, did say that such person was the **President** of the Association of Apartment Owners of Na Hale O Makena, a Hawai'i Nonprofit Corporation, that said person executed the foregoing instrument identified or described as "Amendment To The By-Laws Of The Association Of Apartment Owners Of Na Hale O Makena", as such person's free act and deed on having been duly authorized to execute such instrument in such capacity.

The foregoing instrument is dated JANUARY 3, 2022 and contained 6 pages at the time of this acknowledgment/certification.



Print Name: YATTA JOHNSON
Notary Public, State of Hawai'i

My Commission Expires: JULY 21, 2023

NOTARY CERTIFICATION STATEMENT

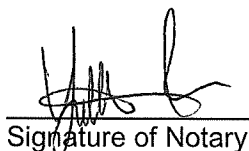
Document Identification or Description:

Amendment To The By-Laws Of The Association Of Apartment Owners Of Na Hale O Makena

Document Date: JANUARY 3, 2022

No. of Pages: 5

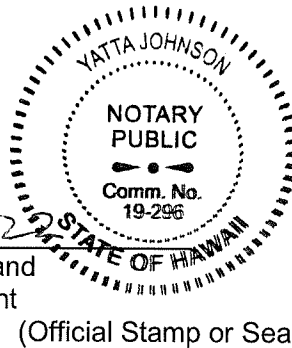
Jurisdiction: 2ND Circuit
(in which notarial act is performed)



Signature of Notary

YATTA JOHNSON
Printed Name of Notary

JANUARY 3, 2022
Date of Notarization and
Certification Statement



STATE OF WASHINGTON

COUNTY OF KING

)
) ss.
)

On this 20 day of January, 2022, before me personally appeared **FRANK ROSS MURRAY**, personally known to me or proven to me on the basis of satisfactory evidence, who being duly sworn or affirmed, did say that such person was the **Treasurer** of the Association of Apartment Owners of Na Hale O Makena, a Hawai'i Nonprofit Corporation, that said person executed the foregoing instrument identified or described as "Amendment To The By-Laws Of The Association Of Apartment Owners Of Na Hale O Makena", as such person's free act and deed on having been duly authorized to execute such instrument in such capacity.

The foregoing instrument is dated January 20th, 2022 and contained 6 pages at the time of this acknowledgment/certification.



[Signature]
Print Name: Joyce Shih
Notary Public, State of Washington
My Commission Expires: 06/09/2024

NOTARY CERTIFICATION STATEMENT

Document Identification or Description:

Amendment To The By-Laws Of The Association Of Apartment Owners Of Na Hale O Makena

Document Date: January 20th, 2022

No. of Pages: 6

Jurisdiction: WA Circuit
(in which notarial act is performed)

[Signature]
Signature of Notary

Joyce Shih
Printed Name of Notary

Date of Notarization and
Certification Statement

